

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. on the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

August 28, 2026

#	Case Name	Tentative
1.	12513 KNOTT STREET, LLC, a California Limited Liability Company vs. SIEV 26-01579581	1. Ex Parte (Appointing Receiver & TRO) 2. Order to Show Cause re: Preliminary Injunction Plaintiff 12513 Knott Street, LLC's Application for Appointment of a Receiver and Preliminary Injunction is GRANTED in PART and otherwise DENIED without prejudice. "[S]ection 564 of the Code of Civil Procedure authorizes the appointment of a receiver on the application of the plaintiff or of any party whose right or interest in the property or funds is probable and where it is shown that the property or fund is in danger of being lost,

removed or materially injured, and also in all cases where receivers have heretofore been appointed by courts of equity.” (*Snidow v. Hill* (1948) 84 Cal.App.2d 702, 704.)

“A receiver may be appointed, in the manner provided by this chapter, by the court in which an action or proceeding is pending in any case in which the court is empowered by law to appoint a receiver.” (Code Civ. Proc. § 564(a).)

Code of Civil Procedure section 564(b) provides, in relevant part: “A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (1) In an action by a vendor to vacate a fraudulent purchase of property, or by a creditor to subject any property or fund to the creditor's claim, or between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost, removed, or materially injured. (2) In an action by a secured lender for the foreclosure of a deed of trust or mortgage and sale of property upon which there is a lien under a deed of trust or mortgage, where it appears that the property is in danger of being lost, removed, or materially injured, or that the condition of the deed of trust or mortgage has not been performed, and that the property is probably insufficient to discharge the deed of trust or mortgage debt [¶¶.] (9) In all other cases where necessary to preserve the property or rights of any party. [¶.] (11) In an action by a secured lender for specific performance of an assignment of rents provision in a deed of trust, mortgage, or separate assignment document. The appointment may be continued after entry of a judgment for specific performance if appropriate to protect, operate, or maintain real property encumbered by a deed of trust or mortgage or to collect rents therefrom while a pending nonjudicial foreclosure under power of sale in a deed of trust or mortgage is being completed.” (Code Civ. Proc., § 564(b)(1), (2), (9), (11).)

“[T]rial courts enjoy a large measure of discretion, albeit not an entirely uncontrolled one, in deciding when to exercise their authority to appoint a receiver.” (*Medipro Medical Staffing LLC v. Certified Nursing Registry, Inc.* (2021) 60 Cal.App.5th 622, 627, internal quotes omitted.) “Because the appointment of a receiver transfers property—or in this case, a business—out of the hands of its owners and into the hands of a receiver, the appointment of a receiver is a very drastic, harsh, and costly remedy that is to be exercised sparingly with caution.” (*Id.* at p. 628, internal quotes & citations omitted.) Thus,

“[d]ue to the extraordinary nature of this remedy and the special costs it imposes, courts are strongly discouraged—although not strictly prohibited—from appointing a receiver unless the more intrusive oversight of a receiver is a necessity because other, less intrusive remedies are either inadequate or unavailable.” (*Ibid.*, internal quotes omitted.)

The moving papers must establish one of the statutory grounds for appointment of a receiver by the preponderance of the evidence. (*Miller v. Oliver* (1917) 174 Cal. 407, 410; *Moore v. Oberg* (1943) 61 Cal.App.2d 216, 220 [preponderance of the evidence standard].) “[B]ecause of the drastic character of the remedy, the discretion is not an entirely uncontrolled one but must be exercised with due regard for the facts in a particular case . . . Ordinarily, if there is any other remedy, less severe in its results, which will adequately protect the rights of the parties, a court should not take property out of the hands of its owners. [Citations.]” (*Golden State Glass Corp. v. Superior Court* (1939) 13 Cal.2d 384, 393; *Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 872.)

The moving party must also show a compelling need for such an appointment. (*Hoover v. Galbraith* (1972) 7 Cal.3d 519, 539.) Lastly, because a receivership is an equitable remedy, there must be a showing of irreparable injury and inadequacy of other remedies. (*Golden State Glass Corp. v. Superior Court* (1939) 13 Cal.2d 384, 393; *Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 872.)

Here, Moving Party has failed to show by a preponderance of evidence circumstances that warrant imposition of a receivership, along with the associated costs and effort involved in establishing and overseeing a receivership.

With respect to Code Civ. Proc. § 564, subs. (b)(1), (2), and (9), Moving Party has not shown that the subject property is in danger of being lost, removed or materially injured if a receiver is not appointed. Moving Party has not shown that the value of the subject property is probably insufficient to satisfy the underlying debt secured by the deed of trust.

With respect to Code Civ. Proc. §564, subd. (b)(11), Moving Party, has shown that the deed of trust here incorporates a provision providing for the appointment of a receiver. But Moving Party has shown no compelling need for a receiver, risk of irreparable injury, and inadequacy of other remedies.

		Specifically, Moving Party has failed to show why appointment of a receiver is necessary to prevent diversion of rental income generated by the subject property during the pendency of this action. A preliminary injunction restraining Defendant from diverting, concealing or otherwise disposing of rental income generated from the subject property is sufficient to protect Plaintiff's interests without involving an unnecessarily costly process of appointing and overseeing a receiver. Furthermore, such an injunction would not cause substantial prejudice to Defendant. Moreover, Defendant's interests can be protected by requiring Plaintiff to post an undertaking. (See Code Civ. Proc. §529.) Plaintiff has proposed an undertaking in the amount of \$10,000. The Court considers this to be sufficient and an appropriate amount. Accordingly, the Court DENIES Plaintiff's request for appointment of a receiver without prejudice, but GRANTS Plaintiff's request for entry of a preliminary injunction. Within 30 days, Plaintiff shall lodge a proposed preliminary injunction for the Court's signature. The proposed preliminary injunction shall restrain Defendant from diverting, concealing, or otherwise disposing of any rental income obtained from the subject property without Plaintiff's prior written consent and shall require Plaintiff to post an undertaking of \$10,000 prior to the injunction taking effect. Moving Party to provide notice. .
2.	American Express National Bank vs. Turcotte 25-01530865	1. Motion to Quash Service of Summons 2. Case Management Conference Defendant Stephen Turcotte's Motion to Quash Service of the Summons is DENIED. A motion to Quash Service of Summons is governed by Code Civ. Proc. §418.10. A motion to Quash is available where the plaintiff has not achieved valid service of summons on a defendant because until valid service of a valid summons has been made, the court lacks jurisdiction over the defendant. (See Code Civ. Proc. §418.10, subd. (a)(1); see also <i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371.) That a defendant has actual knowledge of the complaint does not cure defects in service of summons. (See <i>Kappel v. Bartlett</i> (1988) 200 Cal.App.3d 1457, 1466.) When a defendant moves to quash service, the burden is on the plaintiff to establish jurisdiction by a preponderance of the evidence. (<i>School Dist. of Okaloosa County v. Superior Court</i> (1997) 58

		Cal.App.4th 1126, 1131.) However, this burden shifts when a properly executed proof of service has been filed. Filing a proof of service that complies with the applicable statutory standards creates a rebuttable presumption that service was proper. (<i>Floveyor Int'l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) Here, the proof of service of the summons and complaint filed by Plaintiff indicates it was served on March 16, 2026, on a “Female” with brown eyes “5’4”-5’7” tall” weighing 111-130 lbs. Defendant avers he is a male with blue eyes, 5’9” tall and approximately 160 lbs. At the time of service he was located at 1 Moonshell, Newport Coast, CA 92657, and not at the service address of 25132 Woolwich St., Laguna Hills, CA 92653. Plaintiff does not oppose the motion, however, it has filed an amended proof of service of summons with an amended declaration of diligence stating that the summons and complaint was served by substituted service on a member of the household who would not provide her name. She was a female with brown eyes “5’4”-5’7” tall” weighing 111-130 lbs. The summons and complaint was thereafter mailed to the address where the copies of the summons and complaint were left. The filing of the amended proof of service of summons creates a rebuttable presumption that service was proper. Defendant has not filed a reply disputing the amended proof of service. Thus, service is presumed to be proper. Accordingly, the motion is DENIED. The Case Management Conference is continued to November 12, 2026, at 9:30 a.m. in Department C12. Clerk to give notice
3.	Ruskey vs. Salman 24-01416981	1. Demurrer to Amended Complaint 2. Case Management Conference NTS filed August 6, 2026. ROA 162 OSC re: Dismissal of Settled Case set for December 3, 2026. ROA 165

4.	Chang vs. County of Orange 25-01481350	Motion to Compel Production Plaintiff Marivel Chang’s motion to compel further responses to her first set of requests for production is DENIED IN PART and CONTINUED IN PART, as follows. This motion concerns requests for production (RFP) Nos. 21-23, 25, 28, 31-33, 58, 63, 66, 70, and 80. The motion is DENIED as to RFP Nos. 31-33. Plaintiff has failed to show good cause for the discovery sought by these egregiously overbroad demands. (Code Civ. Proc., § 2031.310, subd. (b)(1) [good cause requirement]; <i>Glenfed Develop. Corp. v. Superior Court</i> (1997) 53 Cal.App.4th 1113, 1117 [good cause].) Plaintiff claims RFP Nos. 31-33 seek “me too” evidence, but they go far beyond seeking such evidence, and plaintiff has failed to show how the information sought may otherwise assist her in evaluating this case, preparing for trial, or facilitating settlement. (See Code Civ. Proc., § 2017.010 [scope of discovery]; <i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 590-591 [relevance for purposes of discovery]; see also <i>Pinter-Brown v. Regents of University of California</i> (2020) 48 Cal.App.5th 55, 89, 96-98 [me too evidence]; <i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 224; Steiner Decl., in passim.) The motion is CONTINUED as to RFP Nos. 21-23, 25, 28, 58, 63, 66, 70, and 80, and the request for sanctions, to October 20, 2026, at 9:00 a.m. in Department CM02. On 4/14/26, just prior to the filing of this motion, defendant County of Orange served a substantive supplemental response to RFP No. 58, along with a substantial production and a second privilege log. (See Chmura Decl. ¶ 5, Ex. C.) On 8/17/26, long after this motion was filed, defendant also attempted to “moot” the motion (and avoid having to justify its responses and objections) to most of the RFPs at issue by serving another set of supplemental responses, which do not correct any of the deficiencies in its prior responses. (See Nguyen Decl. ¶ 5, Ex. E.) These new 8/17/26 “supplemental” responses do not meaningfully differ from defendant’s prior responses and remain inadequate (indeed, some are worse); most simply rephrase and reiterate the same prior response to the subject request. (See <i>ibid.</i>) This reeks of gamesmanship and is not well taken. (See <i>County of San Benito v. Superior Court</i> (2023) 96 Cal.App.5th 243, 256.)
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		The court is therefore continuing the hearing on this matter to order the parties to engage in a further, face-to-face, meet and confer conference as to defendant's most recent responses to the RFPs that remain at issue, and to allow defendant a full and fair opportunity to address the sufficiency/propriety of those responses. As such, the court hereby ORDERS all of the following: (1) By no later than Wednesday 9/23/26, the parties shall engage in a further, good faith, face-to-face meet and confer effort (in-person or videoconference) regarding defendant's most recent supplemental responses to RFP Nos. 21-23, 25, 28, 58, 63, 66, 70, and 80, including, without limitation, the 4/14/26 supplemental response to RFP No. 58 and the 8/18/26 supplemental responses to RFP Nos. 21-23, 25, 63, 66, 70. (2) By no later than Wednesday 9/30/26, the parties shall file a <u>joint</u> separate statement as to the RFPs that remain at issue after the court-ordered meet and confer conference above, if any. This <u>joint</u> separate statement shall fully comply with Cal. Rules of Court, rule 4.1345(c)(1)-(6), and shall additionally include a statement of the factual and legal reasons why a further response should not be compelled as to each matter in dispute. Plaintiff shall give notice.
5.	Padilla Hernandez vs. Pacific Specialty Insurance Company 26-01537689	Motion to Compel Answers to Form Interrogatories Defendant Pacific Specialty Insurance Company's motion to compel responses to its first set of form interrogatories is GRANTED. (See Code Civ. Proc., § 2030.290.) Plaintiff Mario Padilla Hernandez is ORDERED to serve verified responses without objections to defendant's first set of form interrogatories, within 30 days of notice. Sanctions in the amount of \$960 are GRANTED in favor of defendant and against plaintiff, payable within 30 days of notice. Defendant shall give notice of all of the above.
6.	Gombu, LLC vs. Do Builder and Design, Inc. 23-01367281	Motion to Compel Further Responses to Special Interrogatories CONTINUED to September 4, 2026. ROA 193

7.	Reichert vs. Farris 25-01479895	1. Motion for Sanctions 2. Motion to Compel Deposition (Oral or Written) VACATED
8.	Hall vs. Rexel USA, Inc. 24-01396185	Motion to Compel Deposition (Oral or Written) (x4) Plaintiff Jeffrey Hall’s Motions to Compel the Depositions of Laurence McDonald, Rosae Rosas, Amy Travis, and Eric Lazorko are CONTINUED to 10/20/26 at 9:00 a.m. in Department CM02. Plaintiff moves pursuant to Code Civ. Proc. §2025.450, subd. (a) to compel the depositions. Plaintiff submits the declaration of Elyza P. Heraldez to establish that Plaintiff has complied with the pre-filing meet and confer requirement prior to filing these motions. Heraldez, however, only establishes that meet and confer efforts took place via written correspondence. Pursuant to Code Civ. Proc. §2025.450, subd. (b)(2) a motion to compel deposition must be accompanied by a meet and confer declaration that complies with Code Civ. Proc. §2016.040. Code Civ. Proc. §2016.040 requires “a reasonable and good faith attempt, either in person, by telephone, or by videoconference” to meet and confer regarding the issues raised in the motion. Accordingly, the Parties are ORDERED to meet and confer in person, by telephone or by video conference regarding the scheduling of these depositions. If the Parties reach an agreement regarding the scheduling of the depositions, they can notify the Court, and the continued hearing date will be vacated. Plaintiff’s request for monetary sanctions is DENIED. Plaintiff has not complied with Code Civ. Proc. §2023.040, which requires that a party seeking sanctions “in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought...” Here, the notices of motion do not request monetary sanctions and do not identify any person, party and/or attorney against whom sanctions are sought. THIS RULING IS FINAL. Plaintiff shall provide notice.

9.	Burtin vs. Tanner 25-01504831	Motion to Deem Facts Admitted VACATED
10.	Zamarron vs. General Motors LLC 25-01510394	Motion for Judgment on the Pleadings Defendant General Motors LLC's Motion for Judgment on the Pleadings is GRANTED in part and DENIED in part. A defendant may move for judgment on the pleadings against the entire complaint or as to any of the causes of action stated therein if the complaint fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438(b), (c)(1)(B)(ii).) "A motion for judgment on the pleadings performs the same function as a general demurrer and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (<i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999.) First Cause of Action – Violation of Magnuson-Moss Warranty Act "Magnuson-Moss governs warranties for consumer products distributed in interstate commerce. It requires disclosures in connection with written warranties, regulates the substantive content of warranties, and establishes a federal cause of action for breach of a written or an implied warranty (15 U.S.C. § 2310(d)), among other provisions." (<i>Orichian v. BMW of N. Am., LLC</i> , 226 Cal.App.4th 1322, 1330, as modified (July 1, 2014).) As such, to state a claim under Magnuson-Moss, a plaintiff must adequately plead a cause of action for breach of written or implied warranty under state law. (See <i>Clemens v. DaimlerChrysler Corp.</i> (9th Cir. 2008) 534 F.3d 1017, 1022 ["The district court held—and Clemens does not dispute—that the claims under the Magnuson–Moss Act stand or fall with his express and implied warranty claims under state law."].) (See also <i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144 Cal.App.4th 824, 833 ["failure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magnuson–Moss."]). Plaintiffs' claim for violation of the Magnuson-Moss Act is based on breaches of express and implied warranties "by virtue of the above-described acts." (Complaint, ¶ 14.) The Complaint, however, is devoid of any allegations regarding what alleged defects rendered the Subject Vehicle unsafe for use.

Plaintiffs contend the statement “by virtue of the above-described acts” is an error in drafting and the Magnuson-Moss cause of action should have been placed after the cause of action for violation of the California UCC. This error, however, is not the only deficiency with the pleading. As stated below, Plaintiffs have not stated a cause of action for breach of express or implied warranty under state law. Therefore, they cannot state a claim for violation of the Magnuson-Moss Act.

Accordingly, the motion is GRANTED as to the 1st cause of action.

Second Cause of Action – Violation of the California UCC

“The essential elements of a cause of action under the California Uniform Commercial Code for breach of an express warranty to repair defects are (1) an express warranty [citation] to repair defects given in connection with the sale of goods; (2) the existence of a defect covered by the warranty; (3) the buyer’s notice to the seller of such a defect within a reasonable time after its discovery [citation]; (4) the seller’s failure to repair the defect in compliance with the warranty; and (5) resulting damages [citations].” (*Orichian v. BMW of North America, LLC* (2014) 226 Cal.App.4th 1322, 1333–1334; see *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 217 [a promise to repair defects that occur during a future period is the very definition of express warranty of future performance under the California Uniform Commercial Code section 2313].)

When ruling on a demurrer, the court does “not assume the truth of contentions or conclusions of fact or law, such as those contained in plaintiffs’ pleadings. Facts, not conclusions, must be pleaded. Further, where, as here, statutory remedies are invoked, the facts must be pleaded with particularity.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410 [cleaned-up].)

Defendant argues the Complaint fails to plead the most basic facts about the alleged defects the Vehicle manifested or whether any particular nonconformity recurred or remains unresolved. Plaintiffs describe the alleged defects in such vague terms that it is impossible to discern what the alleged defects are, where they arose, or under what circumstances.

In opposition, Plaintiffs assert they have adequately alleged defects with the Subject Vehicle. The Complaint states Plaintiffs purchased a

“virtually useless vehicle due to the frequency of breakdowns, the safety hazards associated with using the Subject Vehicle, and the amount of time the Subject Vehicle was out of service due to repair attempts made by Defendants.” (Complaint, ¶ 26.) Paragraph 25 further alleges that the Vehicle “suffered and continues to suffer from significant defects and non-conformities during the implied and express warranty periods,” and that Defendant violated its obligations to repair the Vehicle to conform to factory specifications and breached its agreement with Plaintiffs.

Such allegations are insufficient to plead a claim for breach of express warranty. Other than conclusory statements that the Subject Vehicle suffered from defects and was “useless” there are no facts regarding the exact nature of the alleged defect. There are insufficient allegations regarding the name(s) of the repair facility/facilities to which Plaintiff delivered the Vehicle, and when/how many repair attempts were made.

Additionally, stating a complete cause of action for a breach of the implied warranty of merchantability requires that Plaintiff plead, among other elements, that at the time of purchase, the automobile was not fit for ordinary purposes for which the goods are used. (Com. Code § 2314.) Because there are no specific facts alleged regarding the defect, the Court cannot determine if the Subject Vehicle was merchantable.

Accordingly, the motion is GRANTED as to the 2nd cause of action.

Attorney’s Fees and Double Damages

Defendant also argues Plaintiffs cannot seek attorney’s fees and double damages under the provisions of the Song-Beverly Act because it does not allege a claim under the Act.

“A motion for judgment on the pleadings performs the same function as a general demurrer and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) A demurrer must dispose of an entire cause of action to be sustained. (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 451-452.)

If Defendant wishes to challenge Plaintiffs’ claim for attorneys’ fees and double damages, the proper motion would be a motion to strike, not a motion for judgment on the pleadings. (Code Civ. Proc. § 435.)

		Therefore, the motion is DENIED with respect to attorney's fees and double damages. Plaintiffs are granted 30 days leave to amend the Complaint. (Code Civ. Proc. § 438(h)(2).) Leave is only permitted with respect to amending the first and second causes of action. Any other amendments to the complaint will require leave of court. Moving Defendant to give notice of this ruling.
11.	Flanders vs. City of Huntington Beach 23-01328127	Motion for Summary Judgment and/or Adjudication Continued via ex parte application to December 11, 2026.
12.	Franco vs. County of Orange 25-01452421	Motion for Summary Judgment and/or Adjudication VACATED